

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Gerald F. Sevier
Judge of the Superior Court
County of Tulare
221 S. Mooney Boulevard Room 303
Visalia, CA 93291

Re: Hanson, Abel
CDC No.: V59526
Case No.: VCF209929A
Date of Sentence: February 24, 2009

Dear Honorable Gerald F. Sevier:

The purpose of this letter is to provide the court with authority to resentence Abel Hanson pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Hanson was sentenced in 2009, and was convicted of section 245, subdivision (a)(1), Assault by Means Likely. The trial court sentenced inmate Hanson on February 24, 2009. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Hanson's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Hanson's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Bret D. Hillman, Tulare County Presiding Judge
Tulare District Attorney
Public Defender

442 2 **ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE**
 [NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED] 9-13

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: TULARE		FILED TULARE COUNTY SUPERIOR COURT VISALIA DIVISION FEB 24 2009 LARAYNE GLEEK, CLERK BY: <i>[Signature]</i>	
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Hanson, Abel	DOB: 3-27-82	VCF209929A -A	
AKA:		-B	
CII NO: A11487543		-C	
BOOKING NO: 77-62607	☐ NOT PRESENT	-D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT	☐ AMENDED ABSTRACT		
DATE OF HEARING 2-24-09	DEPT. NO. 4	JUDGE Gerald F. Sevier	
CLERK Beth Cottrell	REPORTER Cindy Holway #4371	PROBATION NO. OR PROBATION OFFICER PA320893	☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE Paul Greco - DDA	COUNSEL FOR DEFENDANT Brian Schulte - DPD		☒ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (P. M. U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (P. M. U)	604 DAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
1	PC	245(a)(1)	Assault by Means Likely	2008	1-22-09	X			M							3	
2	PC	245(a)(1)	Assault by Means Likely	2008	1-22-09	X			M	X						(3)	
3	PC	186.22(a)	Street Terrorism	2008	1-22-09	X			M	X						(3)	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	PC 186.22(b)(1)(C)	10	PC 12022.7(a)	3			13

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant was sentenced per: ☐ PC 667 (b)-(i) or PC 1170.12 (two-strikes).
☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. Ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: **16**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: **Hanson, Abel**

VCF209929A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$3600 per PC 1202.4(b) forthwith per PC 2085.5; \$3600 per PC 1202.45 suspended unless parole is revoked.

\$_____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.

\$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.

\$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) forthwith per PC 2085.5; \$_____ per PC 1202.45 suspended unless parole is revoked.

\$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s) if known and amount breakdown in item 11, below. ☐ *Victim name(s) in probation officer's report.

c. Fine(s):

Case A: \$_____ per PC 12025. \$_____ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$_____ per PC 12025. \$_____ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$_____ per PC 12025. \$_____ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$_____ per PC 12025. \$_____ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Security Fee: \$60 per PC 1465.8.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

Defendant to pay Criminal Conviction Assessment of \$90 pursuant to GC 70373

Defendant to register as an active participant in Criminal Street Gang pursuant to PC 186.30

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit

Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: **Hisp**

13. EXECUTION OF SENTENCE IMPOSED

a. ☒ at initial sentencing hearing.

b. ☐ at resentencing per decision on appeal.

c. ☐ after revocation of probation.

d. ☐ at resentencing per recall of commitment. (PC 1170(d).)

e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	187	163	24 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
2-24-09		DMH	CDC CRC
		[]	[] []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the Judgment made in this action.

DEPUTY'S SIGNATURE

DATE

2-24-09

